

**[Intel China LTD]
GRANT AGREEMENT
[英特尔（中国）有限公司]
合作协议**

1.0 PARTIES AND PERSONNEL.

1.0 协议方及其联系人

1.1 Grantor:

- 1.1.1 Name: Intel China LTD
- 1.1.2 Address: No. 751 Zi Ri Road, Minhang District, Shanghai
- 1.1.3 [Mailstop]
No. 751 Zi Ri Road, Minhang District, Shanghai, China, 200241

1.1 出资方:

- 1.1.1 名称: 英特尔（中国）有限公司
- 1.1.2 地址: 上海市闵行区紫日路 751 号
- 1.1.3 [邮寄地址]
上海市闵行区紫日路 751 号, 中国, 200241

1.2 Grantee:

- 1.2.1 Name: Northwest Normal University
- 1.2.2 Address: 967 An Ning Dong Road, Lanzhou City, Gansu Province

1.2 合作方:

- 1.2.1 名称: 西北师范大学
- 1.2.2 地址: 甘肃省兰州市安宁东路 967 号

1.3 Grantor's Primary Contact:

- 1.3.1 Name: Carol Qin
- 1.3.2 Telephone: 13911782205
- 1.3.3 Email: carol.qin@intel.com

1.3 出资方的主要联系人:

- 1.3.1 姓名: 秦莉
- 1.3.2 电话: 13911782205
- 1.3.3 电子邮箱: carol.qin @intel.com

1.4 Grantee's Project Director and Primary Contact:

- 1.4.1 Name: Prof. Guo Jiong
- 1.4.2 Telephone: 13909315003
- 1.4.3 Email: guoj72@nwnu.edu.cn

1.4 合作方的项目主管或主要联系人:

- 1.4.1 姓名: 郭炯
- 1.4.2 电话: 13909315003
- 1.4.3 电子邮箱: guoj72@nwnu.edu.cn

1.5 Grantor and Grantee may be referred to herein by their names, as Grantor or Grantee, as a Party or collectively as the Parties.

1.5 捐赠人和受赠人在本协议中可以用其具体的名称指称, 也可以称为“捐赠人”或“受赠人”, 或者单称为“一方”或合称为“双方”。

- 1.6 Status of Grantee: Grantee represents and warrants that its corporate form is one of the following: (i) an educational entity that is a tax-exempt political subdivision of a government that is a publicly funded and operated; or (ii) a not-for-profit non-governmental organization (“NGO”) as evidenced by the government issued determination letter. Further, Grantee represents and warrants that it is NOT a private foundation or a for-profit corporation.
- 1.6 受赠人的地位: 受赠人声明并保证其组织形式属于下列中的某一种: (1) 属于由公众资助和运营的, 政府下属的免税教育机构; 或 (2) 非营利非政府组织, 并经政府颁发的相应决定书证明。并且, 受赠人声明并保证该组织并非为私人基金或营利性公司。

2.0 BACKGROUND AND TERM.

2.0 背景和期限

- 2.1 Project Description: The “Project” is defined as follows and is to be achieved with the funds set forth in Section 4:

- 2.1.1 Project Title: Intel® Skills for Innovation Content Localization – 1st phase
- 2.1.2 Location(s) where Project is to be conducted: Northwest Normal University
- 2.1.3 The Project will start on or after the last signature date below and will end [2024.04.30].
- 2.1.4 A detailed description of the Project’s goals, activities and milestones must be included in Attachment 1 and Attachment 2 hereto, incorporated herein by reference.

- 2.1 项目概述: “项目”的定义如下, 并受本协议第 4 条中资金资助:

- 2.1.1 项目名称: 英特尔创新技能内容本地化-第一期
- 2.1.2 项目履行地: [西北师范大学]
- 2.1.3 该项目将于下方的最后签字日或之后开始并结束于[2024.04.30]
- 2.1.4 项目详细的目标、活动及节点的描述包含在本协议后附的附件 1 和附件 2 中, 构成本协议一部分。

- 2.2 Term: This Grant Agreement begins as of the latest signature date below and expires on [2024.04.30] (the “Grant Term”).

- 2.2 期限: 本捐赠协议于下方的最后签字日起生效, 并于[2024.04.30]到期 (“捐赠协议期限”)。

3.0 GRANT AGREEMENT DEFINED. This agreement is composed of these terms and conditions herein entitled *Grant Agreement*, and the attachments listed below (collectively, the “Grant Agreement”):

3.0 捐赠协议的定义和组成。本协议由“捐赠协议”中所有的条款和规定及下述附件构成, 统称为“捐赠协议”:

3.1 Attachments:

- 3.1.1 Project Narrative: Attachment 1.
- 3.1.2 Project Budget: Attachment 2.

3.1 附件:

- 3.1.1 项目描述: 附件 1.
- 3.1.2 项目预算: 附件 2.

3.2 **Resolution of Discrepancies:** If an inconsistency exists between these terms and conditions entitled *Grant Agreement* and the documents attached hereto, the former will take precedence and govern. Any such inconsistency discovered by Grantee must be brought to Grantor's attention for resolution.

3.2 **条款冲突的解决:** 若本协议正文中的条款与附件中的条款存在冲突, 应以前者(协议正文)中的条款为准。受赠人发现任何不一致的地方, 应提交捐赠人关注以予以解决。

4.0 FUNDING.

4.0 出资

4.1 **Amount:** The total amount of the Grant is [RMB 105,000] (referred to as the "Grant Funds").

4.1 **金额:** 捐赠总额为[人民币 105,000] (称为“捐赠出资”)。

4.2 **Schedule of Payments and Reports:** The Grant Funds will be paid in one or more payments as shown in the table below, provided that the conditions precedent for each payment are met by Grantee.

4.2 **付款的安排及报告:** 捐赠出资将会按照下面表格的显示一次性或分期支付, 前提是受赠人需满足每一笔支付的先决条件:

Payment Number	Amount	Due Date	Progress or Final Report	Report Due Dates
#1	[RMB 105,000]	2024.04.30		2024.04.15
TOTAL	[RMB 105,000]			

款项编号	金额	到期日	进展或最终报告	报告提交到期日
第一笔	[人民币 105,000]	2024.04.30		2024.04.15
总计	[人民币 105,000]			

4.3 **Method of Payment:** Grantor will deliver the Grant Funds to Grantee by check or electronic deposit based on the address or banking information provided to Grantor for its accounting system.

4.3 **付款方式:** 捐赠人将根据受赠人提供其会计系统的地址及银行信息, 通过支票或电子到账方式, 将捐赠出资支付给受赠人。

4.4 **Conditions Precedent to Funding:** Grantor will not issue any whole or partial payment of the Grant Funds until the following items have been timely received by Grantor and are, in Grantor's sole discretion, satisfactory.

4.4.1 Receipt of documents identified in Section 3.1;

4.4.2 Receipt of all documents required by the Intel Accounts Payable department to set up Grantee payments;

4.4.3 Receipt of progress reports as referenced in Section 5, with required content, before any subsequent payments are made; and

4.4.4 Evidence that satisfactory progress is being made toward achieving the goals of the Project.

4.4 **出资先决条件:** 只有捐赠人及时收到令其满意的下列文件, 捐赠人才会将捐赠出资的全部或部分金额支付给受赠人。

4.4.1 收到第 3.1 款中规定的文件;

- 4.4.2 英特尔应付款部门收到创建向受赠人支付所需的所有必要文件;
- 4.4.3 在支付后续款项之前, 已经收到符合要求的第 5 条中规定的进展报告;
并且
- 4.4.4 有证据表明, 已取得为实现项目目标的满意进展。

4.5 Unexpended Funds:

- 4.5.1 “Unexpended Funds” Defined: Unexpended Funds may be identified during a Project or at the conclusion of a Project. Unexpended Funds include: (i) funds in excess of the funds necessary to complete the defined Project; (ii) funds that will not be used to support the Project because the Project failed or cannot be completed; and/or (iii) funds remaining at the end of a defined Project which Grantee has proposed to use in a particular way but which were unapproved by Grantor for such use.
- 4.5.2 Proposed Use of Unexpended Funds: Grantee may submit to Grantor a budget and proposal to use any Unexpended Funds on projects that are consistent with the original Project described in the Grant Agreement. Grantee agrees not to use or make commitments regarding any alternate proposed use of the Unexpended Funds until and unless approved in writing by Grantor. If Grantor does not approve the proposal, then Section 4.5.3 applies.
- 4.5.3 Return Unexpended Funds: Grantee agrees to repay/return Unexpended Funds within 30 days after receipt of a demand letter from Grantor.

4.5 “未使用资金”:

- 4.5.1 “未使用资金”定义为: 未使用资金可能在项目进行或项目结束后得到确认, 其包括: (1) 超过既定项目所需的资金; (2) 由于项目的失败或无法完成, 不再用于支持该既定项目的资金; 和/或 (3) 在既定项目结束后剩余的资金, 受赠人提议以特定方式使用该剩余资金, 但未获得捐赠人的批准。
- 4.5.2 “未使用资金”的使用建议: 受赠人可向捐赠人提交一份在其他项目上使用“未使用资金”的预算和建议, 该等项目需和本捐赠协议中描述的原项目一致。除非得到捐赠人的书面同意, 受赠人不得将“未使用资金”用于其他用途或就“未使用资金”对任何其他用途提议作出承诺。如捐赠人不批准该建议, 那么第 4.5.3 款将予适用。
- 4.5.3 返还“未使用资金”: 受赠人同意, 在收到捐赠人要求返还“未使用资金”的要求函后 30 日内将该资金返还给捐赠人。

5.0 REPORTS. Reports inform Grantor about the progress made in conducting the activities required to achieve the goal of the Grant. Progress reports will be required during the Grant Term on dates shown in the chart in Section 4.2, and must be received in a form that complies with the Grantor's requirements prior to and as a condition precedent to Grantor's proceeding with payments. The final report must be received to conclude the Grant Agreement. Failure to submit a final report will, at a minimum, disqualify the Grantee from receiving consideration for any future funding from Grantor.

5.0 报告。报告用于告知捐赠人为达到捐赠目的而进行的活动进展情况。捐赠期限内, 进展报告应按照本协议第 4.2 款中表格规定的时间节点, 按时提交, 只有捐赠人收到符合其要求的进展报告后, 捐赠人才会进行相应付款。只有捐赠人收到最终报告, 本捐赠协议才履行

完毕。如受赠人未能提交最终报告，至少会使其在将来丧失获得任何来自捐赠人的捐赠资金的资格。

6.0 GRANTEE ROLES AND RESPONSIBILITIES.

6.0 受赠人的工作及职责

6.1 Performance: Grantee will perform and be responsible for the following:

- 6.1.1 Complete the Project activities described in this Grant Agreement and achieve the goals stated in Section 2.1;
- 6.1.2 Use the Grant Funds received from Grantor solely for the Project described in this Grant Agreement; and
- 6.1.3 Refrain from using Grant Funds (i) for a non-charitable or non-educational purpose, (ii) for any activities that concern (a) nuclear end uses, (b) chemical and/or biological weapons, (c) missile technology, or (d) terrorist activities, or (iii) in violation of Sections 8.3, 8.4, and/or 8.5 below.

6.1 履行: 受赠人应履行并对以下事项负责:

- 6.1.1 完成本捐赠协议中描述的项目活动，并且达到本协议第 2.1 款规定的目标;
- 6.1.2 对于捐赠人提供的捐赠资金，只能用于本捐赠协议所述项目规定的用途;
- 6.1.3 资金不得用于（1）非慈善或非教育目的；（2）以下活动相关：（a）核研究和使用的，（b）生化武器，（c）导弹技术，或（d）恐怖活动；或（3）其他违反本协议第 8.3 款，8.4 款和/或 8.5 款规定的情形。

6.2 Grantor's Approval Required: Grantee agrees to gain Grantor's approval in advance of any of the following:

- 6.2.1 Proposed change in the Project's activities or goals (including in response to an event of Force Majeure defined in Section 8.1);
- 6.2.2 Proposed material change in Project budget or use of funds;
- 6.2.3 Proposed change in schedule for the Project; and
- 6.2.4 Proposed use of any Unexpended Funds under Section 4.5.

6.2 须要捐赠人事先同意的事项: 受赠人同意在处理任何以下事项时，要事先征得捐赠人的同意:

- 6.2.1 拟定更改项目的活动内容或者项目目的（包括应对本协议第 8.1 款中规定的不可抗力情形）;
- 6.2.2 拟定对项目的预算或项目资金的使用用途进行重大更改;
- 6.2.3 拟定更改项目的流程计划; 以及
- 6.2.4 拟定如何使用本协议第 4.5 款项下“未使用资金”。

6.3 Notification Requirements: Grantee agrees to promptly notify Grantor of any of the events set forth below. Notice must be delivered to Grantor's Primary Contact identified in Section 1.

- 6.3.1 Change in key personnel for the Project;
- 6.3.2 Change in contact information for Grantee or Grantee's Project Director/Primary Contact;
- 6.3.3 Change of Grantee's name;
- 6.3.4 Change in tax status of Grantee;
- 6.3.5 Any event that would prevent the Project from progressing including an event of Force Majeure defined in Section 8.1 below.

6.3 告知义务: 受赠人同意在以下任何事项发生时，立即通知捐赠人。通知必须送达捐赠人在本协议第 1 条列明的主要联系人。

- 6.3.1 项目主要工作人员的变化;
- 6.3.2 受赠人或者受赠人项目负责人/主要联系人的联系信息变更;
- 6.3.3 受赠人的名称变更;
- 6.3.4 受赠人的税务待遇变化;
- 6.3.5 其他会阻碍项目进行的事项, 包括本协议第 8.1 款中规定的不可抗力的情形。

6.4 Result of Non-Compliance: In addition to any other remedies available to Grantor,

- 6.4.1 Grant payments may be discontinued, modified, or withheld if, in Grantor's sole opinion, Grant Funds are used in a way that does not comply with the terms of this Grant Agreement or does not comply with laws applicable to Grantee and/or the activities conducted by Grantee. In addition, Grantor can terminate, at its own discretion, the Grant Agreement without incurring any liability.
- 6.4.2 If any of the Grant Funds are used in a way that does not comply with the terms of this Grant Agreement, Grantee agrees to refund to Grantor up to the total amount of Grant Funds issued to Grantee under this Grant Agreement, within 30 days after Grantor has issued a demand letter for such funds.

6.4 违反协议的后果: 除捐赠人可享有的其他救济措施之外:

- 6.4.1 如果捐赠人根据自己的判断, 认为受赠人对捐赠资金的使用违反适用于受赠人和/或受赠人行为的法律法规, 捐赠人可以停止、改变或者拒付对受赠人捐赠资金的支付。此外, 捐赠人有权自主决定解除捐赠协议且无需承担任何责任。
- 6.4.2 如果受赠人对任何捐赠资金的使用未能遵守捐赠协议的相关规定, 在捐赠人发出要求返还资金的要求函后的 30 天内, 受赠人同意将最多不超过捐赠人总共付给受赠人金额的捐赠资金, 返还给捐赠人。

7.0 PUBLICITY.

7.0 公开

7.1 No Permission to Use Grantor Logos: No right, title, or license to use any Intel logo is granted hereunder. If Grantee would like to use a Grantor logo in association with Grantor's funding of the Project, please contact your Grantor representative to engage in the appropriate permission process.

7.1 不得使用捐赠人的标志: 本协议并未授予受赠人使用任何英特尔公司的标志的权利或许可。如果受赠人想要与赠与人的项目出资相关使用捐赠人的标志, 应联系捐赠人公司代表以启动适当的许可流程。

7.2 No Publicity: Except as set forth in Section 7.3 below, Grantee will not publicize its relationship with Grantor.

7.2 不得公开: 除非是下文第 7.3 款中规定的情形, 受赠人不得公开其与捐赠人之间的关系。

7.3 Public Acknowledgement: Grantee agrees to acknowledge Grantor's support for the Project in all press releases or other announcements regarding the Project. Grantee and Grantor agree that such public acknowledgement will be substantially in the following form and content, unless otherwise directed by Grantor:

- 7.3.1 If Grantor is the sole funding source for the Project: [Intel China LTD] has provided funding for this Project."

7.3 **公开承诺**：受赠人同意在任何关于该项目的新闻稿或其他宣传活动中，承认该项目是由英特尔出资支持的。除非捐赠人另有要求，双方同意使用以下形式和内容来表述英特尔对该项目的支持：

7.3.1 如果捐赠人是项目唯一的捐赠出资人“[英特尔（中国）有限公司]出资支持本项目”。

8.0 MISCELLANEOUS.

8.0 其他条款

8.1 **Force Majeure Defined**: Events that are considered to be “Force Majeure” and beyond the control of Grantee include: (i) fire, flood, earthquakes, lightning, hurricanes, explosions, unusually severe weather conditions for the area, or other Acts of God; (ii) national or regional or site labor disputes, strikes or riots; (iii) acts of governmental entities enjoining the Project from proceeding; or (iv) acts of war, civil disturbance, rebellion, insurrection, epidemic, terrorism, sabotage, riots, or violent demonstrations.

8.1 **不可抗力**：可以认为构成“不可抗力”，不受受赠人控制的事项包括：（1）火灾、洪水、地震、闪电、飓风、爆炸以及该地区极端恶劣天气或其他天灾的情形；（2）国家或地区或所在地发生劳工纠纷、罢工或者骚乱；（3）因政府行为阻止项目继续进行；或（4）战争、内乱、叛乱、暴动、流行病、恐怖主义、破坏活动、骚乱或其他暴力行为。

8.2 **Legal Right and Authority**: Grantee represents and warrants that it has the legal right and authority to enter into this Grant Agreement and to observe and fully perform its commitments set forth herein, and that its performance hereunder will not conflict with or violate any commitment, agreement, or understanding it has or will have to or with any other person.

8.2 **法律权利及授权**：受赠人承诺并保证其拥有与捐赠人签订本捐赠协议的法律权利和授权，捐赠人能够遵守和完全履行本协议下的所有义务和承诺。并且，本协议下的履行不会与现已签署的、将要签署的对其他第三人的承诺、协议或备忘录冲突。

8.3 **Confidential Information**: To the extent the Parties identify a need to exchange confidential information in relation to the Project, they will enter into an Intel Corporate Non-Disclosure Agreement (“CNDA”). The obligations contained in the CNDA shall survive the termination of this Grant Agreement.

8.3 **保密信息**：若双方认为有必要交换与该项目有关的保密信息，则应签订一份英特尔公司保密协议（“CNDA”）。CNDA规定的义务在本捐赠协议终止后仍然有效。

8.4 **Limitation of Liability**: IN NO EVENT SHALL GRANTOR HAVE ANY LIABILITY TO GRANTEE OR ANY OTHER THIRD PARTY FOR ANY DIRECT, INDIRECT, SPECIAL OR CONSEQUENTIAL DAMAGES ARISING OUT OF THIS AGREEMENT, UNDER ANY CAUSE OF ACTION OR THEORY OF LIABILITY, AND IRRESPECTIVE OF WHETHER GRANTOR HAS ADVANCE NOTICE OF THE POSSIBILITY OF SUCH DAMAGES. THESE LIMITATIONS SHALL APPLY NOTWITHSTANDING THE FAILURE OF THE ESSENTIAL PURPOSE OF ANY LIMITED REMEDY. ANY LIABILITY WHICH CANNOT BE EXCLUDED BY LAW IS LIMITED TO THE AMOUNT PAID BY GRANTOR UNDER THE GRANT AGREEMENT.

8.4 **责任限制**：在任何情形下，捐赠人对于本协议引起的任何直接、间接、特殊或结果性损害不向受赠人或任何其他第三方承担任何责任，无论基于任何诉由或责任理论，亦无论捐赠人是否提前知晓这种损害产生的可能性。即使不符合任何有限救济的实质目的，这些限制仍应适用。对于根据法律不能排除的责任，捐赠者仅在本捐赠协议项下支付的数额内承担责任。

8.5 Compliance with Laws: Grantee represents and warrants that it will comply with laws applicable to Grantee and laws applicable to the Project, including without limitation, to refrain from dealing with any individuals, entities or groups that may be financing or otherwise supporting terrorist activity or terrorist-related individuals, entities or organizations.

8.5 遵守法律: 受赠人声明并保证遵守任何适用于受赠人和该项目的法律, 包括但不限于, 避免与任何可能为恐怖主义活动或与恐怖主义相关的个人、实体或机构提供资金或以其他形式提供支持的个人、实体或团体往来。

8.6 Non-Discrimination: Grantee represents and warrants that Grantee's programs and services are offered without discrimination on the basis of race, color, religion, gender, national origin, ancestry, age, disability, medical condition, genetic information, veteran status, marital status, pregnancy, gender expression, gender identity, sexual orientation, or any other characteristic protected by federal, state or local law, regulation, or ordinance. Educational institutions or non-profit organizations which offer gender-based programs or have services designed to address the needs of other targeted populations, may not, in and of themselves, be considered discriminatory and will be considered for funding.

8.6 非歧视: 受赠人声明并保证受赠人的项目和服务的提供, 不存在基于种族、肤色、宗教、性别、国籍、血统、年龄、残疾、医疗条件、遗传信息、经验地位、婚姻状况、怀孕、性别表达、性别认同、性取向、还是基于受到联邦、州或地方法律、规定或条例保护的任何其他特征的任何歧视。提供基于性别的项目或为解决其他目标人群需要从事特定服务的教育机构或非盈利组织, 本身并不被认为是歧视性的, 而被认为是资助目的。

8.7 Anti-Corruption Compliance. Grantor and Grantee represent and warrant that they have not taken, and will not take, any action that would violate or would cause the other party to violate any anti-corruption law, including but not limited to, the United States Foreign Corrupt Practices Act, the United Kingdom Bribery Act, and all other applicable anti-corruption laws. Grantee represents and warrants that its acceptance of funding from Intel will not violate any applicable law, regulation, policy or rule applicable to Grantee or any code of conduct or ethics policy of Grantee. Grantor represents and warrants that the grant it will provide to Grantee is not being given in exchange for an agreement to influence a recent, pending or anticipated act or decision that may result in Grantor obtaining or retaining business or an improper business advantage.

8.7 反腐败合规: 捐赠人和受赠人承诺并保证其没有采取, 将不会采取任何违反或使对方违反任何反腐败法规的活动; 包括但不限于美国反海外腐败法、英国反贿赂法案和所有其它可能适用的反腐败法规。受赠人承诺并保证其接受来自英特尔的资金不违反任何可能适用的法律、法规、政策、适用于受赠人的制度或者任何受赠人的行为准则或道德政策。捐赠人承诺并保证向受赠人提供的捐赠不是用于交换用来影响近期的、未决定的或被期待发生的行为或决定的协议, 该行为或决定可能导致捐赠人获得或维持业务或不正当业务优势。

8.8 Exports: Grantee acknowledges that any hardware, software, technical data, servicing, support, and training provided under this Agreement (collectively "Product") is subject to export controls under U.S. and other applicable Government laws and regulations. Grantee will comply with these laws and regulations governing export, re-export, import, transfer, distribution, use, and servicing of Product, and agree to obtain all required Government authorizations. Grantee will not sell or transfer Product to any entity listed on a denial order

published by Government, or a country subject to sanctions, without first obtaining a license or authorization. Grantee will not use, sell, or transfer Product for purposes prohibited by Government, including, without limitation, the development, design, manufacture, or production of nuclear, missile, chemical or biological weapons, unless authorized by a specific license. For more details on your export obligations, please visit <http://www.intel.com/content/www/us/en/legal/export-compliance.html>.

8.8 出口：受赠人承认根据本协议提供的任何硬件、软件、技术数据、维修、支持和培训（合称“产品”）受制于美国或其他适用的政府法律和法规的出口管制。受赠人将当遵守这些规定产品出口、再出口、进口、转让、分销、使用和维修的法律法规，并承诺取得所有要求的政府许可。未经许可或授权，受赠人将不会把产品销售或转让给任何政府公布的禁止订购名单上的实体、或者受到制裁的国家。除非获得特定许可，受赠人将不会为政府禁止的目的使用、销售或转让产品，包括但不限于开发、设计、制造或生产核能、导弹、生化武器。更多出口责任相关信息，请访问 <http://www.intel.com/content/www/us/en/legal/export-compliance.html>。

8.9 Successors and Assigns. Grantor may assign its rights or delegate its obligations, or any part thereof under this Agreement, without prior consent from Grantee. Grantee may not assign, whether in conjunction with a change of ownership, merger, acquisition, sale or transfer of all, substantially all or any part of Grantee's business or assets or otherwise, either voluntarily, by operation of law or otherwise, any portion of this Agreement. Any attempt by Grantee to assign or delegate any rights, duties or obligations set forth in this Agreement without Grantor's prior written consent will constitute a material breach of this Agreement and will be null and void. This Agreement will extend to, inure to the benefit of, and be binding upon the parties hereto and their respective directors, officers, partners, proprietors, attorneys, agents, servants, employees, representatives, affiliates, subsidiaries, shareholders, predecessors, and permitted successors and assigns.

8.9 继承及转让：捐赠人可以转让本协议下的权利和义务，或其中的一部分，而无须得到受赠人的事先同意。受赠人不得转让本协议的任何部分，包括不得因所有权变更、合并、收购、出售或转让其全部、大部分或任何财产及经营权利，自愿或者因法律的适用，转让本协议的任何部分。未经捐赠人的事先书面同意，受赠人转让或授予他人任何权利、责任和义务，都被认为是根本违约且属无效。本协议不仅约束双方，也约束双方的董事、高管、合伙人、财产所有人、律师、代理人、服务人员、雇员、代表、附属机构、子公司、股东、被继承人及适格的受让人和继承人。

8.10 Waiver. The failure of either party at any time or times to demand strict performance by the other party of any of the terms or conditions of this Agreement will not constitute a permanent or continuing waiver or relinquishment thereof and each party may at any time demand strict and complete performance by the other of said terms and conditions.

8.10 放弃权利：任何一方在任何时候未要求对方严格履行本协议任何条款，并不构成该方永远地放弃或持续地放弃其要求对方严格履行该条款的权利。任何一方均可在以后的任何时间，要求对方严格实际履行上述条款。

8.11 Termination. Either party may immediately terminate this Agreement for breach by the other party upon written notice. Opportunity to cure the breach may be given, but is not required under this Agreement. Grantor may terminate this Agreement immediately with or without notice: (i) in the event of the direct or indirect taking over or assumption of control of Grantee or of substantially all of its assets by any government, governmental agency, or other third party; (ii) if

Grantee commits an act of bankruptcy, or files any petition under the bankruptcy or insolvency laws of any jurisdiction, country or place; (iii) if a receiver or trustee is appointed for the Grantee's business or property; or, (iv) if Grantee is adjudicated bankrupt or insolvent, or otherwise terminates its business operations.

8.11 终止：由于对方的违约，任何一方均可通过书面通知，立即解除合同，守约方可以考虑给予违约方纠正的机会，但这并非强制性要求。在以下情况下，捐赠人可以直接解除合同，无论通知与否：（1）受赠人或其所有财产实质性地被任何政府、政府机关或其他第三人直接或间接地控制或接管；（2）受赠人破产，或者受赠人已经向任何法律管辖区域、国家或地区申请破产或资不抵债；（3）受赠人的业务或财产已经被指定托管人或接收人；（4）受赠人被判决破产或资不抵债，以及其他导致受赠人无法继续经营的情形。

8.12 No Purchase Obligation. If the Project activities under this Agreement include the purchase of computing products or services, Grantee has no obligation to purchase products or services from Grantor, its subsidiaries, or customers, or purchase products that contain components from Intel or its subsidiaries. Grantee will choose the product specifications, manufacturer and vendor of such products/services in its sole discretion, in accordance with its goals for the Project.

8.12 无购买义务：如果本协议下项目活动中包含购买电脑产品或服务，受赠人没有义务要从捐赠人、其子公司或客户处购买，也没有义务购买含有英特尔或其子公司部件的产品。受赠人将根据本项目的目的，自主选择产品/服务的规格、生产商及其该产品或服务的供应商。

8.13 Relationship of the Parties. This Agreement is non-exclusive; each Party is free to carry out similar projects with third parties. No agency, partnership, joint venture or employment relationship is created between the Parties as a result of this Agreement. Neither Party is authorized to create any obligation, express or implied, on behalf of the other Party.

8.13 双方关系：本协议具有非排他性；任何一方可自行与第三方实施类似项目。本协议不在双方之间产生代理、合伙、合资或雇佣关系。任何一方都未被授权代表另一方设立任何义务，无论明示或默示。

8.14 Governing Law and Jurisdiction. All matters arising out of or related to this Agreement, including without limitation all matters connected with its performance, shall be construed, interpreted, applied and governed in all respects in accordance with the laws of the People's Republic of China. All disputes and litigation arising out of or related to this Agreement shall be subject to the exclusive jurisdiction of the People's Court at the place where the Grantor is located. Each Party hereby irrevocably submits to the personal jurisdiction of such courts and irrevocably waives all objections to such venue.

8.14 适用法律和管辖：由本协议引起的或与本协议相关的所有事项，包括但不限于合同履行，都应当根据中华人民共和国法律进行理解、解释、适用和管辖。所有由本协议引起的或与本协议相关的争端和诉讼应由捐赠人所在地人民法院排他管辖。任何一方都不可撤销地服从该法院的管辖和放弃对管辖权的异议。

8.15 Entire Agreement. This Grant Agreement represents the entire agreement between Grantor and Grantee covering the Project. The Grant Agreement supersedes all previous communications, either oral or written, between the Parties with respect to the Project.

8.15 完整协议：本捐赠协议系捐赠人和受赠人之间就本项目的所有协议，并取代先前双方关于本项目的口头或书面的交流。

8.16 Language. This Agreement is made by both Chinese and English. In case of any discrepancy between the two language versions, the Chinese version shall prevail.

8.16 语言: 本协议用中、英文两种语言书就。若英文文本和中文文本有不一致之处, 应以中文文本为准。

SO AGREED:

双方同意:

Grantee: [Fudan University]

合作方: [西北师范大学]

Grantor: [Intel China Ltd]

出资方: [英特尔(中国)有限公司]

Authorized Signature 授权代表签名

Authorized Signature 授权代表签名

Printed Name 印刷签名

Printed Name 印刷签名

郭炯

Title 职务

Title 职务

Date 日期

Date 日期

Attachments:

1. Project Narrative
2. Budget

附件:

1. 项目描述
2. 预算

LEGAL OK	
	12/13/2023
Xuan ZHENG, SMG Legal	